

KMVTECH EDUCATION**CEL1 · Module 8****Liability and enforcement**

Lesson: Public interest environmental cases

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Environmental liability may be criminal (offences under the National Environment Act and sectoral laws), civil (negligence, nuisance, statutory liability, constitutional claims) or administrative (notices, suspension, cancellation of licences).

Article 39 and public-interest standing allow broad access to courts. Remedies include injunctions, restoration orders, damages, declarations and structural interdicts. The polluter-pays principle informs cost allocation.

Enforcement effectiveness depends on detection, prosecution capacity, judicial willingness and compliance monitoring. Alternative dispute resolution and compliance promotion also play roles.

- Strategic public-interest litigation has been a distinctive feature of Ugandan environmental law, expanding standing and remedies.

2. DETAILED RULES AND APPLICATION

Example: a community affected by industrial pollution may combine a constitutional petition under Art. 39, a nuisance claim, and reliance on statutory duties and EIA conditions to seek both stoppage and restoration.

Match the harm to the liability track (criminal / civil / administrative / constitutional) and design remedies that restore the environment as well as compensate victims.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Ugandan courts have issued landmark environmental orders; implementation and follow-up remain challenging. Continuous monitoring, citizen suits and institutional accountability are essential complements to one-off judgments.

Exam trap: seeking only damages when restoration is possible and necessary, or ignoring the public-interest standing that Article 39 and case law support.

Method: characterise the harm and the duty breached → select liability track(s) → plead standing and evidence → request restorative and compensatory remedies → plan monitoring and further enforcement.

This module closes CEL1 by integrating principles, institutions and substantive rules into effective accountability.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. Name three forms of environmental liability.
2. What does Article 39 enable in terms of standing?
3. What is a restoration order?
4. Why is polluter-pays relevant to remedies?
5. What limits enforcement effectiveness in practice?
6. Why prefer restorative remedies where possible?

Exam tip: Choose the liability track; prioritise restoration and deterrence.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.